

		Plaintiff's Motion for Order to Show Cause Plaintiff's Motion for Order to Show Cause is DENIED. The Court has already addressed the issues raised in Plaintiff's Motion for Order to Show Cause. (See ROA 1630 [2/14/25 Minute Order].) Any issues regarding Womble Bond Dickinson's representation of the various defendants has been clarified by the filing of appropriate substitutions of attorney. (See ROA Nos. 1655, 1656.) Plaintiff's instant motion is nothing more than an untimely and unsubstantiated attempt to request reconsideration of the Court's prior orders on these issues. Trial shall proceed as scheduled. Plaintiff shall give notice of these rulings.
4	CME International, LLC vs. Aloyan 2025-01455857	Motion to Set Aside/Vacate Default and Judgment Defendants Levon Aloyan and Alshot Aloyan's Motion to Set Aside the Default and Default Judgment is DENIED without prejudice to Defendants seeking relief under Code Civ. Proc. §473, subd. (d). Defendants move for an order setting aside a default entered against them on 5/22/25 and the resulting default judgment entered on 3/25/26 pursuant to Code Civ. Proc. §473, subd. (b). Defendants argue that they timely filed responses to the Complaint, but due to excusable neglect, failed to appropriately serve the same upon Plaintiff. Discretionary Relief Under Code Civ. Proc. §473, subd. (b) To obtain relief from default under Code Civ. Proc. §473, subd. (b), a motion "shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc. §473, subd. (b).) When seeking discretionary relief under §473, the

		six month period runs from the entry of default and not the date a default judgment is entered. (Kramer v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13, 39.) Here, the motion was filed nearly fourteen months after entry of default and is thus untimely. (See ROA 26 and 27 [5/22/25 entry of default] and ROA 65 [7/1/26 date of filing motion for relief from default].) Since the motion has not been made “within a reasonable time, in no case exceeding six months, after the judgment ... was taken”, Defendants are not entitled to relief under Code Civ. Proc. §473, subd. (b). Plaintiff shall provide notice of this ruling.
5	Lanagan vs. Penney OPCO LLC 2025-01516569	Demurrer to Complaint Defendant Penney OpCo, LLC’s demurrer to complaint is SUSTAINED as to the second and third causes of action for violation of Penal Code section 502 and the Unfair Competition Law, and otherwise OVERRULED. Plaintiff T.K.C. Lanagan shall have 10 days leave to file a second amended complaint. First cause of action for Penal Code section 638.51. The complaint states facts sufficient to constitute a cause of action for violation of Penal Code section 638.51. (See Pen. Code, § 638.51; see also Compl. ¶¶ 1-13, 35-37, 45-47, 67-125.) Penal Code section 637.2 explicitly authorizes a private civil cause of action for the violation of Penal Code section 638.51. Penal Code section 637.2 provides that “[a]ny person who has been injured by a violation of this chapter [i.e., Pen. Code, §§ 630-638.55] may bring an action against the person who committed the violation” for \$5,000 per violation or three times his actual damages, whichever is greater. (Pen. Code, § 537.2, subd (a).) Section 638.51 falls within “this